

whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case, including issues with forum if still pending, and any other issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508934	STEIN VS GUITAR	MOTION FOR ATTORNEYS FEES BY DOUGLAS E. FIERBERG, RACHAEL J. DENHOLLANDER, CARI S. SIMON, JACOB R. GOODMAN

Tentative Ruling: Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) Here, the statutory basis authorizing fee award is found in the anti-SLAPP statute at CCP §425.16(c)(1), which provides that, other than in few exceptional categories of cases to which this case does not belong, "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (CCP §425.16(c)(1).) Any fee award is mandatory. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The fee award must be reasonable. (*Robertson v. Rodriguez* (1995) 35 Cal.App.4th 347, 362.) Here, there is no dispute that Fierberg Defendants are the prevailing party, and as such, entitled to attorneys' fees and costs.

The amount of an attorney fee award under the anti-SLAPP statute is computed using the lodestar method under which the court multiplies the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. (*Cabral v. Martins* (2009) 177 Cal. App. 4th 471, 491.) The court has discretion to award less than requested if it determines that the fee request is unreasonable. (*Christian Research Institute v. Alnor* (2008) 165 Cal. App.4th 1315, 1322.)

The court may rely on its own experience in determining whether the hourly rate sought or hours spent on the matter are reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) "The "experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong" ["]—meaning that it abused its discretion. [Citations.]" (*Cabral, supra*, 177 Cal. App. 4th at 491.)

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 177 Cal. App. 4th 471, 491.) In determining the value of the legal service, courts consider several factors, including, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (Id at 1096.) Defense counsel requests hourly rates of \$1,019 and \$1,227, which counsel claims are consistent with the Laffey Matrix based on rates for Washington D.C. (Decl. of Lupton, ¶15.) These rates are substantially higher than the market rate for Riverside County. The court reduces rates to \$700 each for attorneys Waxler and Lupton.

Plaintiff argues that the hours claimed by counsel are also excessive. The fee award is limited to fees and costs incurred on the special motion to strike, and not the

entire litigation. (See *S. B. Beach Properties v. Berti* (2006) 39 Cal.4th 374, 381; 569.) The fee award may not include matters unrelated to the anti-SLAPP motion, such as attacking service of process, preparing and revising an answer to the complaint, summary judgment research or attending a mandatory case management conference. (569 *East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 433.) The fee award is designed to “reimburse the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit [citation omitted] rather than to reimburse the defendant for all expenses incurred in the baseless lawsuit. (Id, emphasis in original.)

The Fierberg Defendants requests fees for 106.8 hours, including those anticipated for the Reply and hearing on the fee motion. The majority of the hours billed were necessary for the Anti-SLAPP Motion or present fee motion. The Motion for Reconsideration was a challenge to the ruling on the Anti-SLAPP motion. Therefore, the fees incurred in opposing the Motion were necessary to the Anti-SLAPP Motion. However, the fees for the initial investigation of the action, investigation of the assigned judge and new judicial assignment, emails regarding service issues, the initial case report and case budget report were incurred in the defense of the lawsuit generally rather the Anti-SLAPP Motion specifically. Therefore, the fee award is reduced by 5.5 hours. Furthermore, there are invoices that include 1.7 hours billed by Sara LeBlanc on January 22, 2026 which are entirely redacted. Because it is not clear whether these entries involve the Anti-SLAPP Motion, they are stricken. The 2.0 hours for attending the hearing for motion for attorney’s fees shall be reduced to 1.0 hour. Defendants concede that the hearing on the Motion for Reconsideration did not occur, therefore those 2.0 hours are withdrawn as noted in Defendants’ Reply. Although the hours incurred in drafting and revising briefs are somewhat high, Plaintiff has not established that they are entirely unreasonable.

The Fierberg Defendants also request \$3,604.93 in costs. Plaintiff challenges court reporter fees (\$895) and reporter’s transcript (\$118.05) totaling \$1,013.05. Under CCP §1033.5, court reporter fees may be recoverable as costs as established by statute. (CCP §1033.5(a)(11).) Transcripts of court proceedings are not recoverable if not ordered by the court. (CCP §1033.5(b)(5).) Defendants have not established that these provisions do not apply to the recovery of costs under the anti-SLAPP statute. Since a court reporter was not ordered, these costs are stricken.

Defendants’ Request for Judicial Notice DECLINE to RULE.

Motion for Attorney’s Fees and Costs GRANTED in PART.

Award of \$67,620 in fees (\$700/hr x 96.6 hours).

Award of \$2591.88 in costs.

Total award of \$70,211.88.